

Amit Jaju, Senior Managing Director of Ankura Consulting Group (India), says that individuals may not be aware of their rights—like the onus of providing consent for their data to be collected and processed by Data Fiduciaries, and the details of what such consent entails—which could limit the law’s effectiveness, and businesses may not fully understand their obligations. “Businesses need to invest in new systems and processes, train employees and hire data protection officers. They will also need to manage consent on a large scale and comply with data localisation norms... The law’s effectiveness will also depend on the capacity of the Data Protection Authority to enforce its provisions,” he says.

In addition, the legislation includes provisions related to the storage and processing of personal data in India. These data localisation requirements could pose challenges for businesses that operate globally, or those that rely on cloud services based outside India. The law also enables the central government to exempt certain Data Fiduciaries, including start-ups, from the provisions of the legislation, and block public access to a given Data Fiduciary’s platform in certain circumstances.

As technological advancement tends to move faster than regulation, the government now needs to ensure that the provisions of the law are implemented effectively. Jaspreet Bindra, Founder and MD of tech advisory Tech Whisperer Ltd, explains, “Take the case of generative AI. ChatGPT, Bard, etc., have already made similar laws and regulations obsolete or incomplete in parts of the world. The EU is scrambling to integrate this new technology into its regulatory framework, but by the time that comes out, the technology would have moved even further away.” **BT**

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TECHNOLOGY

Entry Restricted

The government has mandated permits for companies to import laptops and PCs. What will be the impact of the move?

BY NIDHI SINGAL

► **IN EARLY AUGUST**, the government announced that from November 1, 2023, import permits would be required to ship laptops, tablets, all-in-one personal computers (PCs), ultra-small form factor computers and servers to the country. The Directorate General of Foreign Trade (DGFT) has already developed a portal through which companies or traders can apply for licences, with the promise of processing it in just two days if all necessary paperwork is

Group, CyberMedia Research, a market research firm. However, many don’t see a necessity for it. “Most brands selling these products are well-known names, but they must now apply for import permits and licences before they can bring them into the country. Maybe this will help the government keep tighter control on entry-level segments where lesser-known brands might sneak in without quality assurance. Still [I’m] not sure why it’s done,” says Faisal Kawoosa, Founder and Chief Analyst at market intelligence firm Techarc.

Minister of State for Electronics and IT Rajeev Chandrasekhar set the record straight, saying, “This is not at all about licence raj; it is about regulating imports to ensure trusted and verifiable systems, and ensuring India’s tech ecosystem uses only trusted and verified systems that are imported and/or domestically manufactured.”

In May, the Union cabinet approved PLI 2.0 for IT hardware, under which 40 applications have been received, including from top players like HP, Dell, Asus and Acer. However, as building an ecosystem will take time, industry players are seeking an extension to the import licence requirement. **BT**

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EXPERTS SAY THE MOVE WILL BENEFIT ‘MAKE IN INDIA’ AND THE PLI SCHEME 2.0 FOR IT HARDWARE

submitted. Experts say this will benefit ‘Make in India’ and the Production-Linked Incentive (PLI) Scheme 2.0 for IT Hardware.

“The announcement is a positive move, as it seeks to restrict certain electronics imports and enforce licences for restricted items, promoting domestic production and self-reliance,” explains Prabhu Ram, Head-Industry Intelligence